

TENTATIVE RULINGS for LAW and MOTION

June 17, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Two	(530) 406-6787
Telephone number for the clerk in Department Thirteen	(530) 406-6777
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: Neimeyer v. General Motors LLC
Case No. CV2026-1130

Hearing Date: June 17, 2026 **Department Fourteen** **9:00 a.m.**

Defendant General Motors LLC's demurrer to plaintiffs Amber Neimeyer and Casey Neimeyer's complaint as to the fourth cause of action for breach of the implied warranty of merchantability is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).)

Defendant has established that this cause of action is barred by the applicable statute of limitations. (Com. Code, § 2725; *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495; *Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 134; Complaint, ¶ 6.)

Defendant's demurrer to plaintiffs' complaint as to the fifth cause of action for fraudulent inducement - concealment on the ground that is barred by the statute of limitations is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish, based on the allegations in plaintiffs' complaint, that this cause of action is barred by the applicable statute of limitations. (Code Civ. Proc., § 338, subd. (d); Complaint, ¶¶ 6 & 24-25.)

Defendant's demurrer to plaintiffs' complaint as to the fifth cause of action for fraudulent inducement - concealment on the ground that the complaint fails to allege facts sufficient to state a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that plaintiffs' complaint does not state facts sufficient for this cause of action. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40-41 [stating the elements for fraudulent concealment and when a duty disclose a material fact arises]; *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384-1385 [“How does one show ‘how’ and ‘by what means’ something didn't happen, or ‘when’ it never happened, or ‘where’ it never happened?”]; Complaint, ¶¶ 6, 11, & 46-75.)

Defendant's demurrer to plaintiffs' complaint as to the fifth cause of action for fraudulent inducement - concealment on the ground that it is barred by the economic loss rule is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The economic loss rule does not bar a claim for fraudulent inducement that is independent of a defendant's alleged breach of contract. (See *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.) As to the fifth cause of action, the complaint alleges conduct that occurred prior to the parties entering into a contractual relationship. (See *Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal.App.5th 828, 840-841 & 843 [the economic loss rule does not apply to concealment-based claims for fraudulent inducement because “the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm”]; Complaint, ¶¶ 6, 52-54, 58, & 66-67.)

Based on the foregoing, defendant must answer plaintiffs' complaint by no later than **June 29, 2026**. (See Cal. Rules of Court, rule 3.1320(j).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by

counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Reed v. Phi Beta Sigma Fraternity, Inc.
Case No. CV2025-3778

Hearing Date: June 17, 2026 Department Fourteen 9:00 a.m.

On the Court's own motion, defendant City of Davis's demurrer to plaintiffs Asia Danae Reed and Amaya Mireya Morales' complaint is **CONTINUED** to **August 13, 2026**, at 9:00 a.m. in Department Fourteen. As the parties were unable to meet and confer before defendant filed this demurrer, the Court continues the hearing to allow the parties an opportunity to do so. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [stating that if "a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings"]; Code Civ. Proc., § 430.41; Graham decl., ¶¶ 2-4.)

By **July 17, 2026**, the parties are **DIRECTED** to meet and confer, in person, by telephone, or by video conference, regarding the issues raised in defendant's demurrer.

By **July 30, 2026**, defendant **SHALL** file and serve a declaration regarding the parties' meet and confer efforts and identify the remaining issues for the Court's determination. If there are no remaining issues, defendant is **DIRECTED** to request that the August 13, 2026, hearing be vacated.

By **August 6, 2026**, plaintiffs **SHALL** file and serve a responsive declaration, unless defendant requests that the hearing be vacated.

The Court notes that plaintiffs' deadline to file an opposition has passed. (Code Civ. Proc., § 1005, subd. (b).)

TENTATIVE RULING

Case: **Shoman Auto Group v. Always Affordable Auto LLC**
Case No. CV2026-0845

Hearing Date: **June 17, 2026** **Department Thirteen** **9:00 a.m.**

Special motion to strike:

Defendants Always Affordable Auto, LLC and Ahmed Ishwait’s special motion to strike (anti-SLAPP) is **DENIED**. (Code Civ. Proc., § 425.16.) “Litigation of an anti-SLAPP motion involves a two-step process. First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009, internal citation and quotation marks omitted; Code Civ. Proc., § 425.16, subd. (b)(1).) “Second, for each claim that does arise from protected activity, the plaintiff must show the claim has at least minimal merit.” (*Bonni, supra*, 11 Cal.5th at p. 1009, internal quotation marks omitted.) The Court finds that defendant has not established that the challenged allegations in plaintiff Shoman Auto Group’s fourth cause of action for libel arise from protected activities. (*Ibid.*; Code Civ. Proc., § 425.16, subd. (e).) Therefore, the Court does not reach the second step regarding plaintiff’s probability of prevailing on the claim. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to strike portions of complaint:

Defendants’ motion to strike portions of complaint is **DENIED**. (Code Civ. Proc., § 435 et seq.; Civ. Code, § 3294.) Defendants fail to establish that plaintiff’s allegations are insufficient to support a request for punitive damages. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872; *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042; Civ. Code, § 3294, subds. (a) & (c); see Complaint, ¶¶ 18-20 & 22.)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sunset Village v. McGinnis**
Case No. CV2026-1607

Hearing Date: **June 17, 2026** **Department Two** **2:00 p.m.**

Defendants Summer McGinnis and Robert Wesch's request for judicial notice is **GRANTED**. (Evid. Code, § 452, subds. (c), (h).)

Defendants' demurrer to plaintiff's complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to show, through matters on the face of the complaint or judicially noticeable, that plaintiff's complaint does not state facts sufficient to constitute a cause of action. (*Ibid.*; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; see also *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Defendants have failed to show that the person named on the notice is a corporation. (*City of Alameda v. Sheehan* (2024) 105 Cal.App.5th 68, 81-82.)

As the Court is overruling defendants' demurrer, defendants' request to dismiss is **DENIED**. (Code Civ. Proc., § 581, subd. (f)(1).)

Defendants are ordered to file their answer by **June 22, 2026**. (Code Civ. Proc., §§ 586 subd. (a)(2), 1167.3.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Vaidya v. Dhesi et al.**
 Case No. CV2026-0221

Hearing Date: **June 17, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, defendants Rajpreet Dhesi, Anita Dhesi, Keerut Dhesi, and Blueberry Trading LLC's demurrer to complaint is **CONTINUED** to **June 18, 2026**, at 9:00 a.m. in Department Fourteen.